

2.	24CV2404	DEMTECH SERVICES v. DM SOLUTIONS
Motion to Quash		

The Notice does not comply with Local Rule 7.10.05. Repeated violations will be grounds for sanctions pursuant to Local Rule 7.12.13.

Defendants DM Solutions, Inc., David McLaury, and Owen Mackendrick's (collectively, "Defendants") issued subpoenas to "all banks where commercial enterprises tend to bank," effectively seeking production of all financial records for Plaintiff DemTech Services, Inc. ("Plaintiff" or "DemTech") and its individual employees for the last two years. Plaintiff argues the subpoenas are indefensibly overbroad, invade the privacy rights of both Plaintiff and third parties, and appear intended to harass and oppress Plaintiff. Despite efforts to meet and confer, Defendants have refused to withdraw or narrow the subpoenas.

Plaintiff argues that the requests are unreasonable, irrelevant, and not reasonably calculated to lead to the discovery of admissible evidence and are also oppressive because they unreasonably violate Plaintiff's and third parties' rights to financial privacy.

Defendants explain that the underlying lawsuit involves allegations by Plaintiff of stolen trade secrets, including customer lists, and that revenue has declined due to wrongful competition. These allegations are why Defendants state they subpoenaed the six banks. Defendants confirm they are not seeking records for any individual, and that they are seeking records for a little over a two-year period, starting with the time at which Defendant McLaury was terminated.

In its Reply, Plaintiff points out that Defendants did not attempt to determine which banks are actually relevant through discovery, but rather issued subpoenas to common banks. Plaintiff continues to argue that the subpoenas violate the privacy of Plaintiff's agents, in seeking their financial records.

While the Court agrees that Defendants should have used discovery to determine the relevant banks (as these subpoenas may prove to be unfruitful), the Court understands that the subpoenas may produce information relevant to the litigation and the timeframe is narrowly tailored. While the Court will not quash the subpoenas, the Court is requiring that the subpoenas be tailored to only include the records of DemTech and not any individual persons.

TENTATIVE RULING #2:

MOTION TO QUASH IS DENIED. HOWEVER, THE SUBPOENAS ARE TO BE NARROWED TO THE RECORDS OF DEMTECH ONLY.

May 15, 2026
Dept. 9
Tentative Rulings

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.